

25VECV05013 25VECV05013

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-09-11

Motion: DEFENDANT'S MOTION FOR AN ORDER QUASHING SERVICE OF THE SUMMONS AND COMPLAINT AND SETTING ASIDE ITS DEFAULT

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Case Number: 25VECV05013 Hearing Date: September 11, 2026 Dept: U

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

1 LIFE RECOVERY

CENTERS, a California corporation,

Plaintiff,

vs.

INNER CIRCLE BILLING, INC., a California
corporation; and DOES 1-100, inclusive,

Defendants.

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CASE NO: 25VECV05013

[TENTATIVE] ORDER RE: DEFENDANT'S MOTION
FOR AN ORDER QUASHING SERVICE OF THE SUMMONS AND COMPLAINT AND SETTING ASIDE
ITS DEFAULT

Dept. U

8:30 a.m.

September 11, 2026

A.
BACKGROUND

This
case is a breach of contract action filed by Plaintiff 1 Life Recovery Centers
("Plaintiff") against Defendant Inner Circle Billing, Inc. ("Defendant").

On
September 4, 2025, Plaintiff filed its original complaint against Defendant.

On
September 24, 2025, Plaintiff filed its first amended complaint (the "FAC")

against Defendant.

On

October 23, 2025, Plaintiff filed its proof of service documenting substituted service on "Tonette Mallony," Defendant's authorized agent, at the address 2828 Cochran Street #187 in Simi Valley on October 22, 2025, at 12:34 P.M., by leaving papers with Kiana "Doe," a mailbox clerk at a UPS Store. The proof of service is not accompanied by a diligence declaration.

On

December 30, 2025, Plaintiff filed a second proof of service documenting the same efforts at substituted service as are included in the proof of service filed on October 23, 2025.

Also

on December 30, 2025, the Clerk entered Defendant's default. Plaintiff proceeded by seeking default judgment. Default judgment has not been entered.

On

May 20, 2026, Defendant filed a motion for an order quashing service of the summons and complaint and setting aside its default.

On

July 17, 2026, Plaintiff filed its opposition brief.

On

July 24, 2026, Defendant filed its reply brief.

On

July 31, 2026, this Court granted Defendant's motion for an order quashing service of the summons and complaint and setting aside default.

On

August 10, 2026, Defendant filed its answer.

On

August 27, 2026, Defendant filed a case management statement.

As

of 5:00 P.M. on September 8, 2026, nothing else has been filed in the matter by either party.

B. DISCUSSION

In this case, there is a Hearing on Motion to Set Aside/Vacate Default and Default Judgment, originally scheduled for September 3, 2026, then rescheduled by the Court to September 11, 2026.

Defendant's motion for an order quashing service and setting aside default was heard and granted on July 31, 2026. (See 7/31/2026 Minute Order.) There is no other motion to set aside/vacate default filed. Therefore, there is nothing for the Court to rule on.

DATED: September 11, 2026

Lee

S. Arian

Judge
of the Superior Court